

March 23, 2023

Dear ARP members, Planning Director, Select Board members and Town Manager,

My name is Annem Chan Waiy, I am an Arlington resident and architectural designer. I have some experience with developer's projects and Zoning Bylaw in Cambridge and Somerville and I have seen how there are always gaps on the Bylaws and developers tend to interpret rules differently than the City or Town officials. Then projects become precedents to others, pushing the rules on their own interpretation, in favor of them and not our community. We trust in you to enforce those rules.

I am in favor of the proposed Article 53 that seeks to preserve the intent of the MBTA Act Overlay "Bonus Rule for the Commercial Use" and the definition of "60 percent of the ground floor". Our current Zoning Bylaw Section 5.8.4. E Bonuses (1) it is clear: "the ground floor at street level will be at least 60% occupied by eating and drinking establishments, businesses services, childcare, or retail uses." Article 53 proposes even more clarity to the rule so there will be no room for misinterpretation.

We trust in you to enforce those rules and to represent us as a community.

Thank you,

*Annem Chan Waiy*